

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING SECTION 6.04.020, DEFINITIONS, OF CHAPTER 6.04, DEFINITIONS, ADMINISTRATION AND ENFORCEMENT; CREATING A NEW SECTION 6.08.190, COMMUNITY CAT INITIATIVE, OF CHAPTER 6.08, ANIMAL CARE AND CONTROL REGULATIONS GENERALLY; AND AMENDING SECTION 6.20.020, ANIMAL IMPOUNDMENT, OF CHAPTER 6.20, IMPOUNDMENT, OF TITLE 6, ANIMALS, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Section 6.04.020, Definitions, of Chapter 6.04, Definitions, Administration, and Enforcement, of Title 6, Animals, of the Code of the City of Cheyenne, Wyoming, is amended as follows:

6.04.020 Definitions.

The following definitions shall apply in the interpretation and enforcement of this title:

“Animal” means a live, vertebrate creature, domestic or wild.

“Animal control authority” means the animal control officers designated by the city who are responsible for enforcing the provisions of this title.

“Animal control officer” means any person designated by the state, county commissioners, the city or another municipal government, who is qualified to perform duties under the laws, regulations or ordinances of the state, county, city or other municipality pertaining to animals or animal control.

“Animal shelter” means a facility recognized and designated by the governing body for the purpose of impounding or caring for animals held under the authority of this title or state law.

“At large” means not under restraint.

“COMMUNITY CAT” MEANS A CAT THAT IS ABANDONED, STRAY, LOST OR FERAL.

“COMMUNITY CAT CAREGIVER” MEANS A PERSON WHO, IN ACCORDANCE WITH TRAP-NEUTER-RETURN, PROVIDES CARE, INCLUDING FOOD, SHELTER, OR MEDICAL CARE TO A COMMUNITY CAT. A COMMUNITY CAT CAREGIVER SHALL NOT BE CONSIDERED THE OWNER, CUSTODIAN, HARBORER, POSSESSOR, OR KEEPER OF A COMMUNITY CAT.

“Dangerous animal” means any animal which constitutes a physical threat to human beings or other animals, or an animal when, unprovoked, bites or attacks a human being. A properly registered animal trained as a guard, sentry, or police dog may not be considered a dangerous animal.

“Destroyed” means euthanization by methods generally accepted as humane by the veterinary profession.

“Domestic animal” means an animal habituated to live in or about the homes of human beings.

“Dwelling unit” means a structure consisting of one or more rooms or units designed for or occupied as a unit by one family for living purposes.

“EARTIPPING” MEANS THE REMOVAL OF THE ONE-QUARTER (¼) INCH TIP OF A COMMUNITY CAT’S LEFT EAR, PERFORMED WHILE THE CAT IS UNDER ANESTHESIA, TO IDENTIFY THE COMMUNITY CAT AS BEING STERILIZED AND LAWFULLY VACCINATED FOR RABIES.

“Humane trap” means a device designed to capture or contain an animal without causing injury to the animal.

“Inhumane trap” means a device designed to capture or contain an animal which causes injury to the animal as a result of the trap’s operation.

“Leash/lead” means a thong, cord, rope, chain or similar device which holds an animal in restraint, and which is not more than six feet in length.

“Local veterinarian” means any Wyoming licensed veterinarian practicing within Laramie County.

“Owner” means every person keeping or harboring a domestic animal, including the person named on an animal registration record as owner. “Owner” includes, but is not limited to, an occupant of the premises or dwelling unit where the animal is usually kept, if the premises or dwelling unit are other than the premises of the owner shown on the registration record; or any person having control or purporting to have control over any animal which is running at large; or any person in possession of, harboring, or who allows any animal to remain about their premises for a period of three consecutive days or more. The parent or guardian of an owner shall be deemed the owner for purposes of this title when the owner is under the age of eighteen (18) years. For purposes of recovering stolen animals, a person named on the animal’s registration record will be considered the animal’s owner.

“Pack” means a group of three or more animals at large.

“Pet” means any dog, cat or ferret owned, kept, harbored or in the custody of a person living within the city limits of Cheyenne.

“Public nuisance” means an animal which molests passersby or passing vehicles; attacks other animals; damages private or public property; barks, whines, howls, or makes other noise in an excessive, continuous or untimely fashion; or an animal that becomes an untreated source of disease to other animals or humans.

“Restraint” means physical control by a responsible person by use of a leash or lead; tethering an animal to a stationary object not within range of a public street, sidewalk, alley or common path; or confining an animal within a fence or other enclosure which restricts it to a particular premise.

“TRAP-NEUTER-RETURN (TNR)” MEANS THE PROCESS OF HUMANELY TRAPPING, STERILIZING, VACCINATING FOR RABIES, EARTIPPING, AND RETURNING COMMUNITY CATS TO THE TRAPPING LOCATION.

Section 2. That Section 6.08.190, Community Cat Initiative, of Chapter 6.08, Animal Care and Control Regulations Generally, of Title 6, Animals, of the Code of the City of Cheyenne, Wyoming, is created as follows:

6.08.190 COMMUNITY CAT INITIATIVE.

A. THE CITY OF CHEYENNE RECOGNIZES THE NEED FOR INNOVATION IN ADDRESSING THE ISSUES PRESENTED BY COMMUNITY CATS. TO THAT END, IT RECOGNIZES THAT TRAP-NEUTER-RETURN IS THE ONLY EFFECTIVE AND HUMANE METHOD TO MANAGE, AND OVER TIME, REDUCE THE POPULATION OF COMMUNITY CATS. TRAP-NEUTER-RETURN SHALL BE PERMITTED, AND COMMUNITY CAT CAREGIVERS, ORGANIZATIONS, CITY STAFF, AND ANIMAL CONTROL OFFICERS ARE ALLOWED TO CARRY OUT TRAP-NEUTER-RETURN.

B. AN EARTIPPED CAT RECEIVED BY LOCAL SHELTERS WILL BE RETURNED TO THE LOCATION WHERE TRAPPED UNLESS VETERINARY CARE IS REQUIRED. A TRAPPED EARTIPPED CAT WILL BE RELEASED ON SITE UNLESS VETERINARY CARE IS REQUIRED.

C. COMMUNITY CAT CAREGIVERS ARE EMPOWERED TO RECLAIM IMPOUNDED COMMUNITY CATS WITHOUT PROOF OF OWNERSHIP.

Section 3. That Section 6.20.020, Animal Impoundment, of Chapter 6.20, Impoundment, of Title 6, Animals, of the Code of the City of Cheyenne, Wyoming, is amended as follows:

6.20.020 Animal Impoundment.

A. At large, maltreated, rabid, dangerous and/or public nuisance animals may be taken by animal control authorities and impounded in an animal shelter, confined in a humane manner. Animals at large which are not maltreated, rabid or dangerous and which are wearing current rabies tags may be returned to the owner upon proof of ownership. The owner may be issued a citation for a violation of this title. COMMUNITY CATS SHALL NOT BE IMPOUNDED MERELY FOR BEING AT LARGE.

B. Impounded animals which are seriously injured or ill and have no current rabies tag may be destroyed.

C. If the animal is seriously injured or ill and is wearing a current rabies identification tag, a diligent and reasonable effort to locate and inform the owner will be made. If the owner is unable to be located, the animal may, upon recommendation of a veterinarian, be destroyed.

D. Notice of impoundment of an animal wearing a current registration or rabies tag or other identification will be attempted within thirty-six (36) hours of impoundment by the animal control authority to the owner either by telephone or in person at the address noted on the registration, identification or rabies document. When notice cannot be made to an owner within thirty-six (36) hours of impoundment, or when the animal is unidentified, written notice by the animal control authority will be posted at the animal shelter within twelve (12) hours of impoundment, giving a summary description of the animal held. Notice will be mailed to the owner's residence, if known.

E. Any animal not claimed by its owner within two working days will become the property of the animal shelter, and will be available for adoption in a suitable home, or humanely euthanized.

Section 4. This ordinance shall be in full force and effect upon its passage and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

(SEAL)

Richard L. Kaysen, Mayor

Attest:

Carol Intlekofer, City Clerk

Publish: Wyoming Tribune Eagle